

FOOTE, et al v GOTTA LUV PIZZA, et al

24CV47525

PLAINTIFFS' MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT

This matter involves a class action for wage and hour violations. Alison Foote, Jason Ross and Courtney Jones ("Plaintiffs") filed this class action lawsuit against Gotta Luv Pizza, Inc. Gotta Luv Pizza Inc. dba Round Table Pizza #05 ("Defendants.") Plaintiffs bring causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiff seeks penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General's Act ("PAGA").

On April 17, 2026, the Court granted preliminary approval of a settlement agreement ("Agreement"). Plaintiff has now filed a Motion for Final Approval of Class Action Settlement. The motion is unopposed.

I. Settlement Approval Process

A. Legal Standard

Generally, "questions about whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (*Wershba*, supra, 91 Cal.App.4th at 244-245.) The Court must consider whether the proposed settlement is not the product of fraud or collusion and that the settlement, as a whole, is fair and reasonable. (*Id.* at

245.) However “ ‘a presumption of fairness exists where: (1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.’” (*Ibid* [citation omitted].)

PAGA Labor Code section 2699, subdivision (s)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.)

B. Discussion

The Agreement defines the Settlement Class as “all current and former hourly non-exempt employees who performed work for Defendants in California during the Class Period.” (Agreement ¶ 1.5.) The Agreement defines the “Settlement Class Period” as the period “from July 31, 2020, through the date on which the Court issues an order granting preliminary approval of the Settlement.” (*Id.* ¶ 1.13.) Additionally, the “PAGA Period” runs from June 21, 2023 to the date on which the Court issues an order granting preliminary approval of the Settlement. (*Id.* ¶ 1.33.) “Aggrieved Employees” means those Class Members who worked for Defendant within the PAGA Period. (*Id.* ¶ 1.4.)

The Court conditionally certified the Class as part of the settlement process.

There are 366 Class Members. (Declaration of Nick Castro (“Castro Decl.”) ¶ 7.) Plaintiff and Defendant have agreed to settle the class claims for \$450,000.00 in exchange for a release of all claims at issue in this litigation. In the Motion, Plaintiff provides an explanation of the Settlement terms, the results of the Notice provided to the Class Members, and a description of the distribution of the \$450,000 Settlement Fund.

The Net Settlement Amount (“NSA”) is estimated at \$219,959.32. The estimated average recovery for Class Members is \$698.00 (Castro Decl. ¶ 15.) Additionally, the Aggrieved Employees who were employed during the PAGA period will receive a portion of the \$10,000 PAGA amount for an average individual PAGA payment of \$55.03 (*Id.* ¶ 16.)

Class Members were permitted to “opt out” if they did not want to participate in the Settlement. No Class Member chose to opt out of the Settlement. (Castro Decl. ¶¶ 11.) There were also no Class Members that disputed or objected to the Settlement. (*Id.* ¶¶ 12, 13.) Sixty Class Notice Packets were returned as undeliverable. (*Id.* ¶ 8.) ILYM Group performed a skip trace on the sixty returned packets that did not have a forwarding address and obtained forty-three updated addresses. (*Id.* ¶ 8.) Notices were then sent to the forty-three updated addresses. (*Id.* ¶ 9.) Of those forty-three, 17 were

returned undeliverable and they are deemed undeliverable because no forwarding address has been obtained. (*Id.* ¶ 10.) An uncashed Settlement check will be distributed to the Controller of the State of California to be held pursuant to the Unclaimed Property Law. (Agreement at ¶10.)

ILYM Group, Inc., (“ILYM”) was approved as the Settlement Administrator. IYLM reports that notice packets were mailed to the 366 Class Members on June 11, 2026 via U.S. first class mail. (Castro Decl. ¶ 6.) As of August 4, 2026, IYLM has received 17 returned class notices as undeliverable. (*Id.* ¶ 10.) IYLM has not received any objections to the Settlement, has not received any disputes, and has not received one request for exclusion. (*Id.* ¶¶ 10-13.). IYLM therefore reports a participation rate of 100%. (*Id.* ¶ 14.)

Even without an objection to the requested attorney fees and costs, the Court has a duty to protect the rights of all parties, and to prevent abuses which might undermine the proper administration of justice. (*Howard Gunty Profit Sharing Plan v. Superior Court* (2001) 88 Cal.App.4th 572, 581.) Here, counsel argues the fees and costs are reasonable based upon the attorneys’ experience, the amount of time they have invested in managing the litigation and achieving the Settlement, and the risks involved in undertaking contingency-based litigation.

In *Laffitte v. Robert Half Int’l Inc.* (2016) 1 Cal.5th 480, the California Supreme Court addressed the appropriate method to use when awarding attorney fees in a common fund wage and hour class action. The choice of which fee calculation method to apply is generally within the discretion of the trial court. (*Id.* at 504.) Use of the percentage method to calculate a fee in a common fund case is permissible; and public policy supports the requested one-third percentage of the common fund. (*Id.* at 503.) Here, counsel achieved a \$450,000.00 Settlement fund. The average payment to class members is \$600.98 with the estimated highest gross payment of \$5,767.27. (Castro Decl. ¶ 15.) Class counsel undertook the representation at their own expense and risk with no assurances that they would receive any compensation. Class counsel shows that they are experienced with this type of litigation and have sufficient discovery and data to make an informed decision. Class counsel investigated and researched the claims in controversy, related documents and evidence, their defenses, and the relevant legal authorities. In addition, class counsel attended mediation and negotiated this Settlement. Based on the relevant factors, the requested attorneys’ fees of one-third of the common fund are just and reasonable. The litigation costs and settlement administrator costs are reasonable and supported. The entire net settlement amount will be paid out to class members. The parties have complied with the Agreement and notice of the final approval hearing was properly given to the class members.

Having reviewed the documents submitted in conjunction with this motion, pursuant to Code of Civil Procedure section 382 and California Rules of Court, rule 3.769, the Court finds that the Settlement (including class member payouts, attorneys' fees and costs, settlement administrative costs, the enhancement payment/incentive award, and the PAGA payment) is fair, adequate, and reasonable and in the best interests of the class members. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801.)

III. Conclusion

Plaintiff's **motion for final approval is GRANTED**. The settlement conference scheduled for August 31, 2026, is vacated.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted (Proposed) Judgment and Order.

TAYLOR, et al v RITCHIE

25CV47902

PLAINTIFF'S MOTION TO DEEM REQUESTS ADMITTED AND FOR DISCOVERY SANCTIONS

This case involves a property dispute between Plaintiffs Kelly and Matthew Taylor ("Plaintiffs") and Lavina Richie ("Defendant.") Now before the Court is Plaintiff's Motion to Deem Requests for Admissions, Set Two Admitted.

Defendant has not filed an opposition.

On June 18, 2026, Plaintiffs served, by mail, "Plaintiff Kelley Taylor's Request for Admissions to Defendant Lavina Ritchie, Set Two 2" ("RFA2") on Defendant. (Declaration of Justin P. Swierczek ("Swierczek Decl.") ¶ 3, Ex. 1.) Defendant never responded nor communicated with Plaintiffs' counsel about the RFAs. (*Id.* ¶¶ 4, 5.)

Pursuant to Code Civ. Proc. section 2033.280, if a party to whom requests for admission are directed fails to serve a timely response, the following rules apply:

(a) The party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

1) The party has subsequently served a response that is in substantial compliance with Sections 2033.210, 2033.220, and 2033.230.

2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

Further, the Court shall deem the facts admitted as truth, unless it finds that the party to whom the RFAs were directed, "has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280(c).)

A party moving to compel initial responses under this section is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)